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Amending Acts

1. Nepal Scout (First Amendment) Act, 2055 2055.9.22

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2. Act to Amend Some Nepal Acts relating to Education and Sports, 20632. Act to Amend Some Nepal Acts relating to Education and Sports, 2063 2063.9.14

3. Act to Strengthen the Republic and Amend Some Nepal Laws, 20663. Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 2066.10.7

4. Act to Amend Some Nepal Acts, 2072 2072.11.13

5. Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 2075.11.19

Act No. 27 of the year 2050

Omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066. Act made to provide for Nepal Scout

Preamble : Whereas it is desirable to make Nepal Scout more capable and organized in order to participate children and youth of Nepal Omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 in a campaign according to the principles and beliefs of world scouting, to develop their physical, mental and intellectual faculties, to make them disciplined, self-reliant and of good character, to enhance the spirit of service, and to involve them in national development work;

Therefore, Parliament has enacted this Act in the twenty-second year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the "Nepal Scout Act, 2050".

(2) This Act shall commence immediately. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Nepal Scout" means the Nepal Scout established pursuant to Section 3. (b) "National Council" means the National Council constituted pursuant to Section 7. (b1) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(b1) "Provincial Council" means the Provincial Council constituted pursuant to Section 9A. (c) "National Executive Committee" means the National Executive Committee constituted pursuant to Section 10. (d) "Advisory Council" means the Advisory Council constituted pursuant to Section 13. (e) "Chief Scout" means the Chief Scout referred to in Section 15. (f) "Chief Commissioner" means the Chief Commissioner referred to in Section 16. (g) "Deputy Chief Commissioner" means the Deputy Chief Commissioner referred to in Section 17. (h) "Commissioner" means the Commissioner referred to in Section 18. (h1) Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2063.(h1) "Member

of Nepal Scout" means the Member referred to in Section 18A. (i) "Secretary" means the National Secretary of Nepal Scout Added by the First Amendment.. (j) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Establishment of Nepal Scout: (1) Nepal Scout shall be established to participate children and youth of Nepal Omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 in scouting to the maximum extent possible, to develop their physical, mental and intellectual faculties, to make them disciplined and self-reliant, and to involve them in national development work. (2) The Nepal Scout established before the commencement of this Act shall be deemed to have been established under this Act. (3) The central office of Nepal Scout shall be located in the Kathmandu Valley. (4) Nepal Scout may open offices within Nepal Omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 as required. 4. Nepal Scout to be an Autonomous Body: (1) Nepal Scout shall be an autonomous and organized body with perpetual succession. (2) Nepal Scout shall have its own separate seal for all its acts and proceedings. (3) Nepal Scout may acquire, use, sell, or otherwise dispose of movable and immovable property like an individual. (4) Nepal Scout may sue and be sued in its own name like an individual. 5.

Objectives of Nepal Scout: The objectives of Nepal Scout shall be as follows:- (a) To acquaint children and youth of Nepal Omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 with the principles, beliefs and spirit propounded by World Scouting, and to make children and youth public servants. (b) To make children and youth dutiful, disciplined, self-reliant, of good character and capable citizens through the medium of Nepal Scout. (c) To mobilize or cause to be mobilized Nepal Scout for rescue and relief work of persons affected by natural calamities and accidents. (d) To carry out or cause to be carried out community service and public welfare related work. (e) Added by the First Amendment.(e) To conduct or cause to be conducted various programs including adult education to educate every class and group of society. (f) Added by the First Amendment.(f) To mobilize or cause to be mobilized youth manpower to conduct various public utility programs related to health, environment, soil conservation and utilization of natural resources. 5A. Scout Law and Promise: Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2063.The Scout Law and Promise of Nepal Scout shall be as prescribed. 6. Organization of Nepal Scout: The organization of Nepal Scout shall be as follows, and their collective form shall constitute the structure of Nepal Scout:- (a) National Council, (b1) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(b1) Provincial Council, (b) National Executive Committee, (c) Advisory Council. 7.

Constitution of National Council: (1) There shall be a National Council as the supreme body of Nepal Scout. (2) The National Council shall be constituted as follows:- (a) Chief Scout - Chairperson (b) Chief Commissioner - Vice-Chairperson (c) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(c) Three members from among the members of the Federal Parliament - Member (d) Member, National Planning Commission (looking after education) - Member (d1) Added by the First Amendment.(d1) Governor, Nepal Rastra Bank - Member (e) Amended by the First Amendment.(e) Secretary, Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.Ministry of Youth and Sports - Member (f) Amended by the First Amendment.(f) Secretary, Ministry of Finance - Member (g) Amended by the First Amendment.(g) Secretary, Ministry of Women and Social Welfare - Member (h) Omitted by the Act to Amend Some Nepal Acts relating to Education and Sports, 2063.(h) (i) Amended by the First Amendment.(i) Secretary General, Nepal Red Cross Society - Member (j) Amended by the First Amendment.(j) Five persons from among social workers - Member (k) Amended by the First Amendment.(k) Three persons from among donors - Member (l) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(l)

Twenty-eight members, with representation of two women and two men from each Province, sent by election from among themselves by the nationally trained troop members of Nepal Scout of the respective Province - Member (m) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(m) Twenty-eight members, with representation of four members from each Province, sent by election from among themselves by the provincial level members of Nepal Scout from their respective Provinces - Member (n) Secretary - Member-Secretary (3) For the nomination of members pursuant to clauses (b), (c), (j) and (k) of sub-section (2), the National Council shall constitute a five-member recommendation committee consisting of elected members of the National Council, and the Chief Scout shall nominate the person recommended by such committee as a member of the National Council.

Provided that, for the first nomination of members under this sub-section, the Chief Scout shall constitute a five-member recommendation committee consisting of elected members of the National Council, and the Chief Scout shall nominate the person recommended by such committee as a member of the National Council.

(4) Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2063.(4) The election of members pursuant to clauses (l) and (m) of sub-section (2) shall be as prescribed.

(5) The term of office of nominated and elected members of the National Council shall be four years. 8. Functions, Duties and Powers of National Council: (1) The functions, duties and powers of the National Council shall be as follows:-

- (a) To determine the policy and program of Nepal Scout.
- (b) To give directives and guidance to the National Executive Committee.
- (c) To pass the budget of Nepal Scout.
- (d) To make necessary rules relating to the operation of Nepal Scout.
- (e) To evaluate or cause to be evaluated the performance of Nepal Scout.
- (f) To discuss and pass the annual programs and reports presented at the meeting of the National Council.
- (g) To appoint an auditor for auditing the accounts of Nepal Scout and fix remuneration.
- (h) To do or cause to be done other works as prescribed for the fulfillment of the objectives of Nepal Scout.

(2) The National Council may, if it deems necessary, consult any domestic or foreign expert or advisor. 9. Meeting of National Council: (1) The meeting of the National Council shall ordinarily be held once a year.

(2) The meeting of the National Council shall be chaired by the Chairperson of the National Council, and in his/her absence, by the Vice-Chairperson of the National Council. In the absence of both the Chairperson and Vice-Chairperson of the National Council, a member chosen by the members of the National Council from among themselves shall chair the meeting of the National Council.

(3) Other procedures relating to the meeting of the National Council shall be as determined by the National Council itself.

(4) The Chairperson, Vice-Chairperson, members and Member-Secretary of the National Council may receive meeting allowance as prescribed for attending the meeting. Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.9A. Constitution and Functions,

Duties and Powers of Provincial Council: The constitution and functions, duties and powers of the Provincial Council shall be as prescribed. 10.

Constitution of National Executive Committee: (1) There shall be a National Executive Committee to act as the executive body of Nepal Scout. (2) The National Executive Committee shall be constituted as follows:- (a) Chief Commissioner - Chairperson (b) Deputy Chief Commissioner - Member Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2063.(c) Representative, Ministry of Youth and Sports - Member Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.(d) Seven members from among the elected members of the National Council, ensuring representation of all Provinces - Member (e) Commissioners - Member (f) Secretary - Member-Secretary (3) The term of office of members other than ex-officio members of the National Executive Committee shall be four years. (4) For the nomination of members pursuant to clause (d) of sub-section (2), the National Council shall constitute a five-member recommendation committee consisting of elected members of the National Council, and the Chief Scout shall nominate the person recommended by such committee as a member of the National Executive Committee. Provided that, for the first nomination of members under this sub-section, the Chief Scout shall constitute a five-member recommendation committee consisting of elected members of the National Council, and the Chief Scout shall nominate the person recommended by such committee as a member of the National Executive Committee. 11. Functions, Duties and Powers of National Executive Committee: The functions, duties and powers of the National Executive Committee shall be as follows:- (a) To obey or cause to be obeyed the directives given by the National Council. (b) To implement or cause to be implemented the decisions of the National Council. (c) To prepare the annual program, budget, progress report, audit report and other reports and proposals of Nepal Scout and submit them to the National Council for approval or ratification. (d) To operate, protect, supervise, enter into agreements, contracts or leases concerning movable and immovable property of Nepal Scout. (e) To accept financial and other assistance received for Nepal Scout. (f) To transfer movable and immovable property of Nepal Scout with the approval of the National Council. (g) To cause scouting to be carried out in rescue and relief work including other humanitarian service activities in natural calamities or accidents. (h) To constitute committees, sub-committees or task forces as necessary to carry out work in accordance with the objectives of Nepal Scout.

Added by the First Amendment.(h1) To prepare necessary rules relating to the operation of Nepal Scout and submit them to the National Council for approval.

(i) To do or cause to be done other works necessary for the fulfillment of the objectives of Nepal Scout. 12. Meeting of National Executive Committee: (1) The meeting of the National Executive Committee shall ordinarily be held four times a year.

(2) The meeting of the National Executive Committee shall be chaired by the Chairperson of the National Executive Committee, and in his/her absence, the Deputy Chief Commissioner shall chair the meeting of the National Executive Committee.

(3) Other procedures relating to the meeting of the National Executive Committee shall be as determined by the National Executive Committee itself.

(4) The meeting allowance payable to the Chairperson, members and Member-Secretary of the National Executive Committee for attending the meeting shall be as prescribed. 13. Advisory Council: (1) There shall be an Advisory Council to provide necessary assistance and advice to Nepal Scout.

(2) The constitution and functions, duties and powers of the Advisory Council shall be as prescribed. Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2063.14. Patron: (1) The Prime Minister shall be the Patron of Nepal Scout.

(2) It shall be the duty of Nepal Scout to follow the directives given by the Patron. 14A. X

15. Chief Scout: The Minister of State for Education and Sports shall be the Chief Scout of Nepal Scout. 16. Chief Commissioner: (1) The term of office of the Chief Commissioner shall be four years.

(2) The functions, duties and powers of the Chief Commissioner shall be as prescribed. 17. Deputy Chief Commissioner: (1) The Chief Scout shall, on the recommendation of the Chief Commissioner, appoint Added by the First Amendment.two persons, one woman and one man, from among the Commissioners to the position of Deputy Chief Commissioner.

(2) The term of office of the Deputy Chief Commissioner shall be four years.

(3) In the absence of the Chief Commissioner, the senior Deputy Chief Commissioner among the Deputy Chief Commissioners shall perform the work of the Chief Commissioner.

(4) Other functions, duties and powers of the Deputy Chief Commissioner shall be as prescribed. 18. Commissioner: Amended by the First Amendment.(1) For the effective conduct of the work to be done by Nepal Scout under this Act or the rules made under this Act, up to fifteen persons shall be appointed to the position of Commissioner from among the elected members of the National Council, as prescribed.

(2) The term of office of a Commissioner shall be four years.

Added by the First Amendment.(2A) Notwithstanding anything contained in sub-section (2), if it is determined by the National Executive Committee that a Commissioner has become incapable of performing his/her official duties due to physical or mental illness or any other reason, the Chief Scout shall remove him/her from the position of Commissioner. If removed in such manner, or if the position of Commissioner becomes vacant for any other reason, another person may be appointed to that position for the remaining term by completing the procedure pursuant to sub-section (1). Provided that no Commissioner shall be deprived of the opportunity to present a defence before removal.

(3) The functions, duties and powers of a Commissioner shall be as prescribed. Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2063.18A. Member of Nepal Scout: (1) For a person to become a member of Nepal Scout, such person must fulfill the following qualifications:-

(a) Have received scout training as prescribed,

(b) Not have taken membership of any political party, and

(c) Not be engaged in political activities.

(2) Notwithstanding anything contained in clauses (b) and (c) of sub-section (1), the provision of those clauses shall not be deemed to prevent institutional representation in the National Council, Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.Provincial Council, Executive Council and Advisory Council.

(3) Other provisions relating to the membership of Nepal Scout shall be as prescribed. 19. Secretary: (1) The Secretary shall be a full-time officer of Nepal Scout. Amended by the First Amendment.(2) The Secretary shall be appointed from among the elected members of the National Council as prescribed.

(3) The term of office of the Secretary shall be four years.

(4) The Secretary shall perform the work of Nepal Scout under the supervision of the National Council, the National Executive Committee and the Chief Commissioner.

(5) It shall be the responsibility of the Secretary to implement or cause to be implemented the decisions made by the National Council and the National Executive Committee.

(6) Other functions, duties and powers of the Secretary shall be as prescribed.

(7) The remuneration and facilities of the Secretary shall be as prescribed. 20. Provisions relating to Employees: (1) Nepal Scout shall have employees as necessary.

(2) Provisions relating to the posts, qualifications, remuneration and conditions of service and facilities of employees pursuant to sub-section (1) shall be as prescribed. 21.

Fund of Nepal Scout: (1) Nepal Scout shall have a separate fund, which shall consist of the following amounts:- (a) Amount received from the Government of Nepal, (b) Amount received from international organizations, foreign governments or agencies, (c) Amount provided by any person or institution as donation or assistance, (d) Amount received from membership fees, and (e) Amount received from any other source.

(2) When Nepal Scout receives any amount pursuant to clause (b) of sub-section (1), it shall obtain the approval of the Government of Nepal. (3) The amount in the Fund of Nepal Scout shall be deposited by opening an account in any bank within Omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066 and the operation of the account shall be as prescribed. (4) All expenses incurred by Nepal Scout shall be borne from the Fund referred to in sub-section (1). 21. Accounts and Audit: (1) The accounts of income and expenditure of Nepal Scout shall be maintained in accordance with the prevailing law. (2) The audit of Nepal Scout shall be conducted by an auditor appointed by the National Council. 22.

Annual Report to be Submitted: The Chief Scout shall submit the annual report of Nepal Scout to the Patron. 23. Power to Constitute Committee, Sub-committee or Task Force: (1) For the fulfillment of the objectives of Nepal Scout, the National Executive Committee may constitute committees, sub-committees or task forces as necessary. (2) The functions, duties and powers of a committee, sub-committee or task force constituted pursuant to sub-section (1) shall be as specified by the National Executive Committee. 24. Delegation of Powers: (1) The National Council may, as necessary, delegate some of the powers conferred to it under this Act or the rules made under this Act to the National Executive Committee, the Chief Commissioner or the Secretary. (2) The National Executive Committee, the Chief Commissioner or the Secretary may, as necessary, entrust some of the powers conferred to them under this Act or the rules made under this Act to any body or officer. 25. Liaison with Government of Nepal: Nepal Scout shall maintain liaison with the Government of Nepal through Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075.the Ministry of Youth and Sports. 26. Power to Make Rules: The National Council may make necessary rules to implement the objectives of this Act. 27.